

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend amendment number 1 to HB4421

Page	<u>13</u>	Section	<u></u>	Lines	<u>5 1/2</u>
					Of the printed Bill
					Of the Engrossed Bill

By inserting the following language:

"SECTION 5. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-2-102.1 of Title 10A, unless there is created a duplication in numbering, reads as follows:

A. 1. Upon referral from the Department of Human Services or a law enforcement agency, when a child has been determined to be a "drug-endangered child," and the residence into which the child would be returned has been identified as a location where drug activity has occurred or is suspected, including but not limited to the manufacture, distribution, use, storage, or environmental contamination of controlled dangerous substances, the premises shall be subject to environmental assessment prior to reunification.

2. A referral for environmental assessment and, if necessary, remediation shall be made by the designated Department of Human Services case manager or the jurisdictional law enforcement agency to the

AMEND TITLE TO CONFORM TO AMENDMENTSAmendment submitted by: Melissa ProvenzanoAdopted:
Reading Clerk

appropriate local, county, or state authority responsible for environmental health, hazardous substance response, public health, or code enforcement prior to the child being returned to the residence.

B. 1. Environmental testing shall include surface sampling for fentanyl and fentanyl analogs when fentanyl possession, use, distribution, storage, or overdose has occurred on the premises, drug paraphernalia containing suspected opioid residue has been identified, or reasonable suspicion of fentanyl contamination exists.

2. A residence shall be deemed unsafe for occupancy by a child if fentanyl contamination exceeds 0.1 micrograms per one hundred (100) square centimeters (0.1µg/100 cm²) on any accessible surface.

3. If contamination exceeds 0.1 micrograms per one hundred (100) square centimeters (0.1µg/100 cm²) and does not meet criteria for elevated designation pursuant to subsection C of this section, remediation shall be conducted by a contractor qualified in hazardous substance remediation pursuant to applicable state environmental standards.

4. Remediation shall continue until post-remediation clearance testing demonstrates contamination levels at or below 0.05 micrograms per one hundred (100) square centimeters (0.05 µg/100 cm²) on all tested accessible surfaces.

5. Testing and remediation conducted pursuant to this subsection shall be performed by qualified contractors certified in hazardous substance remediation.

C. 1. In any residence where the manufacture, distribution, use, storage, or elevated level of exposure to fentanyl or fentanyl analogs is suspected, admitted, or identified through investigation, the Department

of Human Services or the jurisdictional law enforcement agency may designate the premises as an Elevated Fentanyl Exposure Risk Property.

2. An Elevated Fentanyl Exposure Risk Property designation shall be applied when one or more specified heightened contamination conditions exist, including multiple-room contamination, bulk quantities, overdose occurrence, vulnerable child presence, or other heightened environmental contamination risks.

D. 1. Upon designation as an Elevated Fentanyl Exposure Risk Property, remediation shall be conducted exclusively by a specialized biohazard cleanup company qualified in hazardous drug decontamination and certified pursuant to applicable state environmental and occupational safety standards.

2. Remediation shall include comprehensive environmental assessment, removal and lawful disposal of contaminated porous materials, High Efficiency Particulate Air (HEPA) vacuuming and chemical neutralization of affected surfaces, ventilation system inspection or replacement if necessary, and independent post-remediation clearance testing.

3. Cleaning performed solely by an occupant, landlord, or non-certified contractor shall not satisfy the requirements of this subsection.

E. The Department shall not recommend reunification of a child to any residence subject to this section unless environmental assessment has been completed, contamination exceeding statutory thresholds has been remediated, clearance testing verifies contamination levels at or below 0.05 micrograms per one hundred (100) square centimeters (0.05 µg/100 cm²), and the premises has been certified safe for occupancy.

F. 1. If the residence is leased or rented, written notice of contamination or Elevated Fentanyl Exposure Risk Property designation shall be provided to the property owner or landlord.

2. A property owner receiving notice shall ensure testing within fifteen (15) days, complete required remediation prior to re-occupancy by a child, and maintain documentation for a minimum of five (5) years.

3. A landlord shall not knowingly permit re-occupancy of a contaminated dwelling by a child prior to required remediation and clearance.

4. A property owner who knowingly fails to remediate and permits occupancy by a child shall be subject to a civil fine not to exceed Five Thousand Dollars (\$5,000.00) per violation and potential referral for prosecution under applicable child endangerment statutes.

5. No liability shall attach to a landlord who lacked actual or constructive knowledge and promptly complied upon receiving notice.

G. 1. The district court may order the parent, guardian, caregiver, or property owner to bear the cost of environmental testing and remediation.

2. If the court determines financial hardship exists, the Department may utilize available state or federal funds consistent with appropriations.

H. The Department of Human Services shall promulgate rules necessary to implement this section within sixty (60) days of the effective date of this act."